The public lands are rolling to rough in topography with a rocky soil cut by shallow ravines and deep small canyons. The land is unfit for farming and has but a nominal value for seasonal grazing.

C. GIRARD DAVIDSON,
Acting Secretary of the Interior.

NOVEMBER 12, 1947.

[F. R. Doc. 47-10222; Filed, Nov. 19, 1947; 8:51 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[S. O. 778-B]

PART 95—CAR SERVICE

RAILROAD OPERATING REGULATIONS FOR CAR MOVEMENT

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 14th day of November A. D. 1947.

Upon further consideration of Service Order No. 778 (12 F. R. 6811) and Service Order No. 778-B (12 F. R. 7142) and good cause appearing therefor: It is ordered, that:

Service Order No. 778 *Railroad operating regulations for car movement* be, and it is hereby, further suspended until 12:01 a. m., December 20, 1947.

It is further ordered, that this order shall become effective at 12:01 a. m., November 19, 1947; that a copy of this order and direction be served upon each State railroad regulatory body and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U. S. C. 1 (10)-(17))

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 47-10231; Filed, Nov. 19, 1947; 8:52 a. m.]

[S. O. 787-A]

PART 95—CAR SERVICE

SUSPENSION OF EMBARGO AGAINST M. DUNN & CO., DETROIT, MICH.

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 14th day of November A. D. 1947.

Upon further consideration of Service Order No. 787 (12 F. R. 7361) and good cause appearing therefor: It is ordered, that:

Service Order No. 787 *M. Dunn & Company, Detroit, Mich., embargoed,* be, and it is hereby, suspended until 7:00 a. m., April 30, 1948, unless otherwise modified by order of the Commission.

It is further ordered, that this order shall become effective at 12:01 a. m., November 15, 1947; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U. S. C. 1 (10)-(17))

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 47-10230; Filed, Nov. 19, 1947; 8:52 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Office of Indian Affairs

[25 CFR, Part 130]

SAN CARLOS INDIAN IRRIGATION PROJECT, ARIZ.

NOTICE OF PROPOSED CHANGE IN OPERATION AND MAINTENANCE CHARGES

NOVEMBER 10, 1947.

Pursuant to section 4 (a) of the Administrative Procedure Act approved June 11, 1946 (Public Law 404, 79th Congress); the Act of Congress approved June 7, 1924 (43 Stat. 476), as supplemented and amended, and in accordance with the public notice issued by the Secretary of the Interior on December 1, 1932, and by virtue of authority delegated by the Secretary of the Interior to the Commissioner of Indian Affairs, September 14, 1946 (11 F. R. 10297) and thence to the District Directors (25 CFR, Part 02.8), notice is hereby given of intention to amend § 130.110 of Title 25, Code of Federal Regulations, by increasing the per acre operation and maintenance charge on the 50,000 acres of tribal lands and trust patent Indian lands of the San Carlos Irrigation Project within the boundaries of the Pima Indian Reservation from $2.50 per acre per annum to $3.50 per acre per annum. The foregoing change in rate of assessment is to become effective for the calendar year 1948 and the calendar year 1949 and to continue in effect thereafter until further order.

Interested persons are hereby given opportunity to participate in preparing the proposed amendments by submitting their views and data or arguments in writing to William H. Zeh, District Director, U. S. Indian Service, 4100 Rhoads Circle, Phoenix, Arizona, within 30 days from the date of the publication of this notice of intention in the daily issue of the FEDERAL REGISTER.

WM. H. ZEH,
District Director.

[F. R. Doc. 47-10221; Filed, Nov. 19, 1947; 8:51 a. m.]

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR, Part 53]

GRADING AND CERTIFICATION OF MEATS, PREPARED MEATS, AND MEAT PRODUCTS

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that the Secretary of Agriculture, pursuant to the authority vested in him by law, proposes to revise the regulations governing the grading and certification of meats, prepared meats, and meat products (7 CFR, and Supps. 53.1 et seq.) as follows:

DEFINITIONS

Sec.
53.1 Meaning of words.
53.2 Terms defined.

ADMINISTRATION

53.3 Authority.

WHERE SERVICES MAY BE OFFERED

53.4 Designated markets and locations.
53.5 When grading services may be denied or withdrawn.

GRADING SERVICES

53.6 Kind of service.
53.7 Request for establishment of grading service.
53.8 Who may obtain grading service.
53.9 How to obtain grading service.
53.10 Form of application for grading service.
53.11 When application for grading service deemed filed.
53.12 When application for grading service may be rejected.
53.13 When application for grading service may be withdrawn.
53.14 Authority of agent.
53.15 Accessibility of product.
53.16 Basis of service.
53.17 Order of grading.
53.18 Financial interest of grader.
53.19 Certificates, issuance.
53.20 Certificates, form.
53.21 Certificates, disposition of.
53.22 Certificate, advance information concerning.

GRADE IDENTIFICATION

53.23 Evidence of grade.
53.24 Custody of grade-identifying devices.
53.25 Alteration or imitation of grade-identifying devices forbidden.

APPEAL GRADING

Sec.
53.26 When appeal grading may be made.
53.27 How to obtain appeal grading.
53.28 When appeal may be refused.
53.29 When appeal may be withdrawn.
53.30 Order in which appeal gradings shall be made.
53.31 Who shall make appeal gradings.
53.32 Appeal grading certificate.
53.33 Superseded certificates.
53.34 When request for regrading is not an appeal.

CHARGES FOR GRADING SERVICES

53.35 Fees and costs.
53.36 How fees shall be paid.
53.37 Disposition of fees.

MISCELLANEOUS

53.38 Fraud or misrepresentation.
53.39 Interfering with a grader.
53.40 Identification.
53.41 Correction of errors in grading.
53.42 Publications.
53.43 Political activity.

AUTHORITY: §§ 53.1 to 53.43, inclusive, issued under Title II, act of Aug. 14, 1946, 60 Stat. 1087, 43 Stat. 844, as amended.

DEFINITIONS

§ 53.1 *Meaning of words.* Words used in this part in the singular form shall be deemed to import the plural, and vice versa, as the case may demand.

§ 53.2 *Terms defined.* For the purpose of the regulations in this part, unless the context otherwise requires, the following terms shall be construed respectively to mean:

(a) *The acts.* The Agricultural Marketing Act of 1946 (Title II of the act of Congress approved August 14, 1946, 60 Stat. 1087) and the following provision of the act of Congress making appropriations for the Department of Agriculture for the fiscal year ending June 30, 1948, and for other purposes, approved July 30, 1947 (Pub. Law 266, 80th Congress), or a similar provision of any future act of Congress conferring like authority:

For the investigations and certification, in one or more jurisdictions, to shippers and other interested parties of the class, quality, and condition of any agricultural commodity or food product, whether raw, dried, canned, or otherwise processed, and any product containing an agricultural commodity or derivative thereof when offered for interstate shipment or when received at such important central markets as the Secretary may from time to time designate, or at points which may be conveniently reached therefrom under such rules and regulations as he may prescribe, including payment of such fees as will be reasonable and as nearly as may be to cover the cost for the service so rendered.

(b) *Department.* The United States Department of Agriculture.

(c) *Secretary.* The Secretary of Agriculture or any officer or employee of the Department to whom the Secretary has heretofore delegated or may hereafter delegate the authority to act in his stead.

(d) *Administration.* Production and Marketing Administration of the Department.

(e) *Administrator.* The Administrator of the Production and Marketing Administration of the Department, or any officer or employee of the Administration to whom the Administrator has heretofore lawfully delegated, or to whom the Administrator may hereafter lawfully delegate, the authority to act in his stead.

(f) *Person.* Individual, association, partnership, other group of individuals, or corporation.

(g) *Financially interested party.* Any person having a financial interest in the products involved, including but not limited to the shipper, receiver, or carrier, or any authorized person on behalf of such party.

(h) *Applicant.* A financially interested party who requests product grading services.

(i) *Official grader.* An employee of the Department authorized by the Secretary to grade products and investigate and certify to shippers and other financially interested parties the class, grade, other quality designation, quantity, or condition of products under the acts.

(j) *Supervisor of grading.* An official grader or other qualified person designated by the Administrator to supervise grading, grade identification, and certification of products and to maintain uniformity thereof under the provisions of the acts and the regulations in this part.

(k) *Regulations.* Rules and regulations of the Secretary under the acts.

(l) *Products.* Meats, prepared meats, meat food products, and meat by-products prepared under Federal inspection, or under State, county, municipal, or other inspection acceptable to the Administrator.

(m) *Meat.* Flesh derived from cattle, sheep, swine, or goats, intended for human food, with or without the accompanying and overlying fat and the portions of bone, skin, sinew, nerve, and blood vessels which normally accompany the flesh.

(n) *Prepared meats.* The product intended for human food obtained by subjecting meat to a process of drying, curing, smoking, cooking, comminuting, seasoning, or flavoring, or to any combination of such processes, to which no considerable quantity of any substance other than meat or meat by-products has been added.

(o) *Meat food products.* Any articles of food or any articles which enter into the composition of food for human consumption, which are derived or prepared, in whole or in substantial and definite part, by a process of manufacture, from any edible portion of cattle, sheep, swine, or goats.

(p) *Meat by-products.* All edible parts, other than meat, intended for human food, derived from cattle, sheep, swine, or goats, and including such organs and parts as hearts, livers, kidneys, tongues, tails, sweetbreads, brains, lungs, melts, stomachs, tripe, lips, snouts, and ears.

(q) *Carcass.* The commercially prepared or dressed body of any cattle, sheep, swine, or goat intended for human food.

(r) *Designated market.* Any shipping, receiving, handling, or distributing point designated by the Administrator as an important central market where products are prepared, shipped, or distributed in commerce in considerable quantity and may be graded and certified under the acts.

(s) *Designated location.* A point designated by the Administrator, with activities similar to those of a designated market and readily accessible therefrom, to which services can be extended conveniently by the Administrator in accordance with the provisions of the acts.

(t) *Grading service.* A service authorized by the acts and established and conducted under this part for the purpose of determining and certifying the class, grade, other qualifying designation, quantity, or condition of products.

(u) *Office of grading.* The office of an official grader.

(v) *Grade*—(1) *Noun.* An important commercial subdivision of a product based on certain definite and preference-determining factors, such as conformation, finish, and quality in meats. (2) *Verb.* To determine the class, grade, other quality designations, quantity, or conditions of products according to official or tentative standards for such products, or to determine the compliance of products with specifications.

(w) *Class.* A subdivision of a product based on essential physical characteristics that differentiate between major groups of the same kind or species.

(x) *Quality.* A combination of the inherent properties of a product which determines its relative degree of excellence.

(y) *Condition.* The physical characteristics of a product which affect its merchantability, with special reference to its state of preservation, cleanliness, soundness, wholesomeness, or fitness for human food.

(z) *Standards.* The official and tentative standards of the Department for the class, grade, other quality designations, or condition of products (7 CFR, 1946 Supp., 53.101 et seq.).

(aa) *Specifications.* The descriptions of official and tentative standards for products, Federal specifications for products, or such other specifications as may be approved by the Administrator.

(bb) *Grade certificate.* A certificate issued by an official grader showing the class, grade, other quality designations, quantity, or condition of products graded.

(cc) *Certification of products.* The preparation and issuance of signed grade certificates as required under the provisions of this part.

(dd) *Grade identification.* A name or symbol denoting the official grade of products graded or the record of same on an official certificate.

(ee) *Grade-identifying device.* A brand, stamp, seal, mark, or other device approved by the Administrator to be affixed to products or to the containers thereof to indicate the grade of such products as determined by an official grader.

(ff) *Appeal.* A request by a financially interested party for appeal grading and certification.

(gg) *Appeal grading.* The act of grading and certifying products in response to an appeal from original grading and certification.

(hh) *Fees.* Charges to cover costs of grading services rendered.